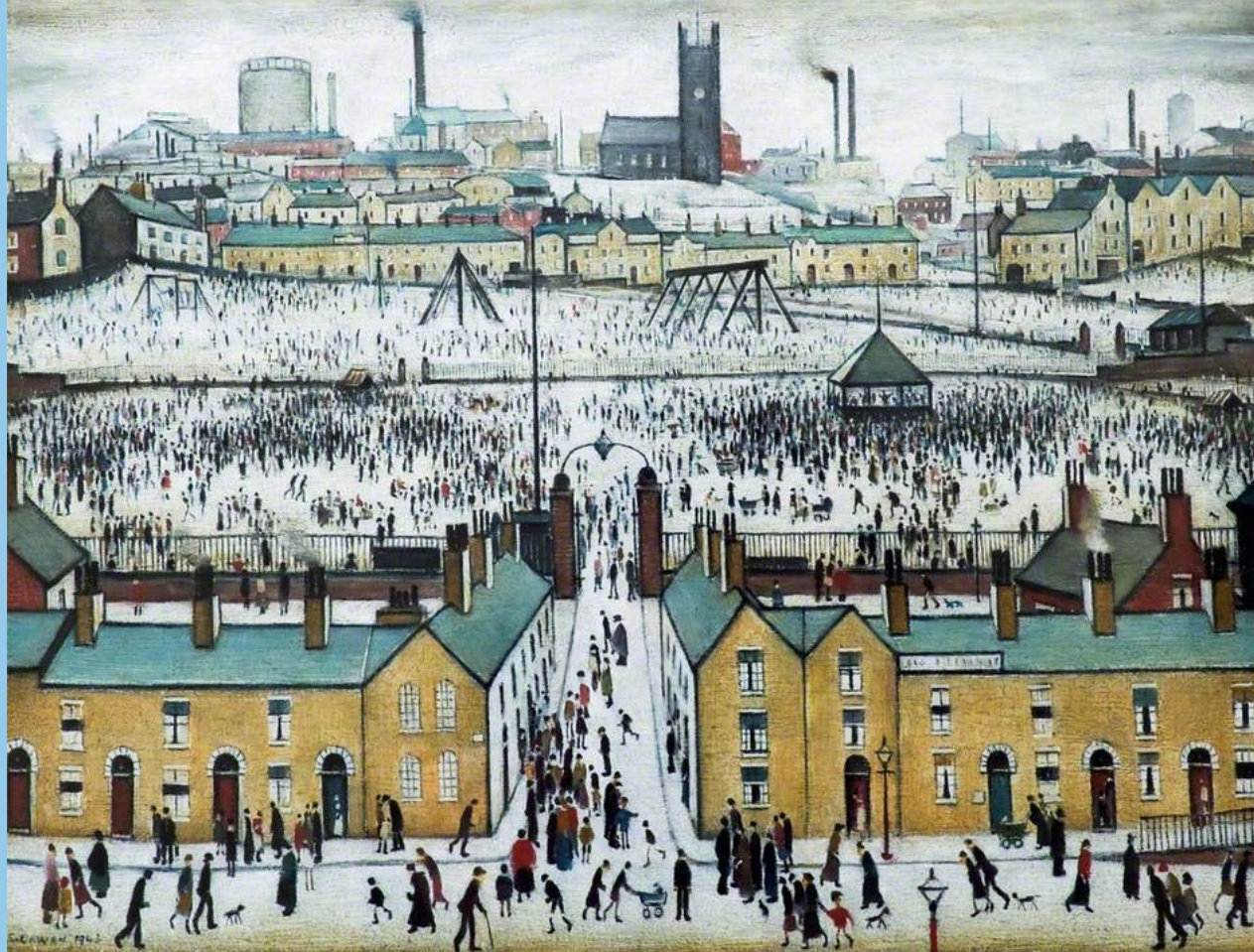


Intentional Torts (2)

Topics outline

1. Introduction to intentional torts
2. Battery
3. Assault
4. False Imprisonment
5. Defences
6. The tort in *Wilkinson v Downton*
7. The Protection from Harassment Act 1997

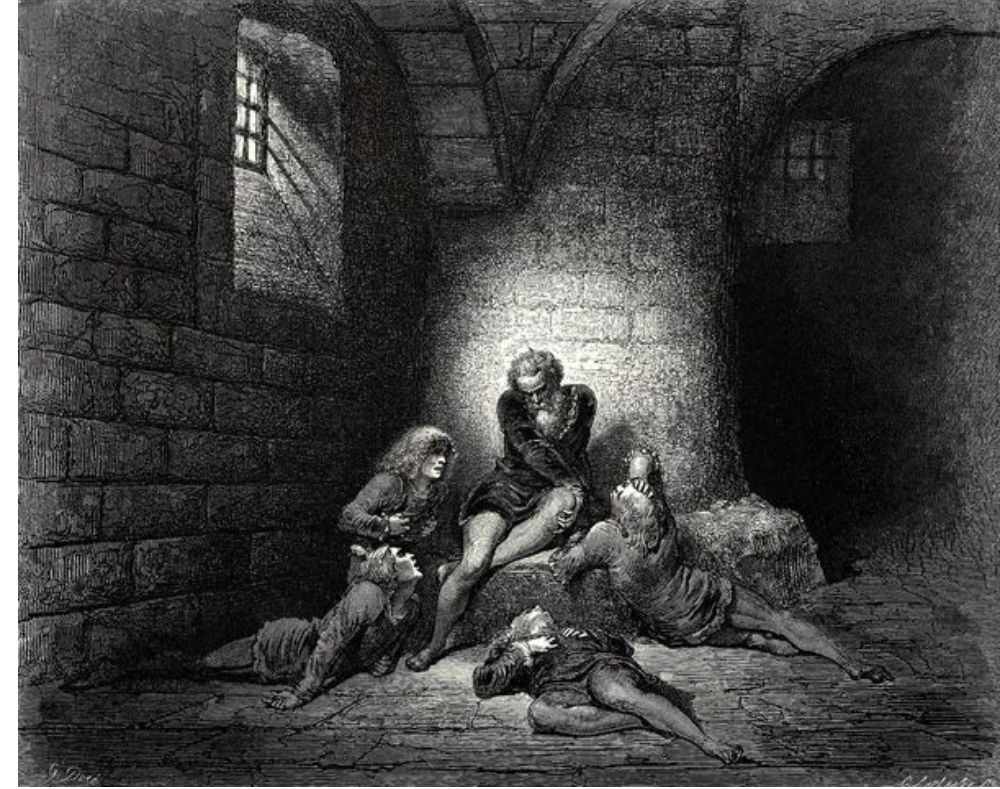


4. False Imprisonment

False imprisonment

'D intentionally deprives C of their liberty without lawful excuse'

- A. Intentional act
- B. Directness
- C. Complete restriction of liberty
- D. No lawful excuse



A. Intentional act



Iqbal v Prison Officers Association [2009] EWCA Civ 1312

Facts

- C, a prisoner, sued D when prison guards unlawfully went on strike which led to C being confined to his cell all day.

Held

- No false imprisonment for three reasons: (i) no intention; (ii) no 'act'; and (iii) no directness.

A. Intentional act



Iqbal v Prison Officers Association [2009] EWCA Civ 1312

“[F]alse imprisonment is different from battery. ... [W]ith false imprisonment, the loss of liberty is the essence of the tort and, in my view, the claimant must show not merely an intentional act or omission ... but also an intention to deprive the claimant of his liberty.”

(Smith LJ, [72])

A. Intentional act



Iqbal v Prison Officers Association [2009] EWCA Civ 1312

“If a security guard in an office block locks the door to the claimant's room believing that the claimant has gone home for the night and not realising that he is in fact still inside the room, he has committed a deliberate act. However, he did not intend to confine the claimant. He may well be guilty of negligence because he did not check whether the room was empty but he would not be guilty of the intentional tort of false imprisonment.”

(Smith LJ, [72])

A. Intentional act



Iqbal v Prison Officers Association [2009] EWCA Civ 1312

- “the mere failure of the prison officers to work at the prison, while it may have been a breach of their employment contracts, involved no positive action on their part.” (Neuberger LJ, [34])
- “the general rule that an omission or refusal to release the claimant from confinement will not amount to false imprisonment” (Smith LJ, [61])

B. Directness

Davidson v Chief Constable of North Wales [1994] 2 All ER 597

Facts

- ❑ D was a store detective, who wrongly thought Cs were stealing from the store.
- ❑ D called the police and Cs were arrested and held for 2 hours.

Held

- ❑ Distinction between: (a) D who makes a complaint or report to a police officer, leaving the latter to make up his mind whether to make an arrest and, (b) D who actually instigates the arrest, instructing or authorising the police officer to act. → (a) is not false imprisonment, but (b) is.
- ❑ Here, what D did was (a), so not false imprisonment.



B. Directness



Iqbal v Prison Officers Association [2009] EWCA Civ 1312

“In the present case the prison officers simply withdrew their labour, which did not directly lead to the claimant being confined in his cell ... The strike may have caused, indeed foreseeably caused, the governor to decide not to let the claimant out of his cell ... but that is a different thing. ... [I]t is equally true that it must have appeared likely, indeed almost inevitable, to the defendant store detective in the *Davidson* case ... that, once she laid credible information before a police constable that she had just seen [C] shoplifting, the constable would arrest [C].”

(Neuberger LJ, [27])

C. Complete restriction of liberty



Bird v Jones [1845] 7 QB 742

Facts

- D had constructed a seating enclosure on a bridge and stationed policemen who prevented C passing through the area for 30 minutes.

Held

- No false imprisonment.
- 'A prison must have its boundaries large or narrow ... it may be movable or fixed, but a boundary it must have'.
- 'imprisonment is ... a total restraint of the liberty of the person ... and not a partial obstruction of his will, whatever inconvenience it may bring on him'

C. Complete restriction of liberty

Burton v Davies (1953) (Australia)

Facts

- ❑ D groped C in a speeding car.

Held

- ❑ False imprisonment as it was too fast to safely get out.
- ❑ Just because there are technically means of escaping, it is still false imprisonment if the means of escape is dangerous, inconvenient, or unreasonable.

C. Complete restriction of liberty



Herd v Weardale Steel Coke & Coal [1915] AC 67

Facts

- ❑ C refused to work because of what he saw as unsafe conditions at the start of a mining shift. He wasn't taken back up until hours later.

Held

- ❑ No false imprisonment. C accepted as part of his contract that he would be underground until the end of the shift.

C. Complete restriction of liberty

Robinson v Balmain New Ferry [1910] AC 295

Facts

- ❑ C paid to enter D's wharf in order to use a ferry. He missed it. A sign by the entry turnstile noted that there was a fee to exit in all events. Refusing to pay, C was held until he forced his way out.

Held

- ❑ C had contracted that to avoid payment he would leave the wharf by a different route.
- ❑ No false imprisonment.

C. Complete restriction of liberty

Meering v Grahame-White Aviation (1920) 122 LT 44

“a person could be imprisoned without his knowing it. I think a person can be imprisoned while he is asleep, while he is in a state of drunkenness, while he is unconscious, and while he is a lunatic ... Of course the damages might be diminished and would be affected by the question whether he was conscious of it or not.”

(Atkin LJ, [53-54])

D. No lawful excuse

R (Lumba) v Secretary of State of the Home Department [2011]
UKSC 12

Facts

- ❑ C was detained after a prison sentence until a decision on their deportation under an unpublished secret policy.
- ❑ C sued for false imprisonment arguing that the secret policy was illegal.
- ❑ D argued that, in fact, C probably would have been detained under a lawful policy anyway.

D. No lawful excuse

R (Lumba) v Secretary of State of the Home Department [2011] UKSC 12

Held

1. The secret policy was unlawful as a matter of public law.
2. Minor public law unlawfulness of detention $\neq$ false imprisonment.
3. Serious public law unlawfulness of detention = false imprisonment.
4. Here, the decision to detain was tainted by serious public law error. C had been falsely imprisoned.
5. However, the fact that C could have been lawfully detained under another, lawful policy, meant C was only awarded nominal damages.



5. Defences

Defences

- A. Consent
- B. Necessity
- C. Self-defence

A. Consent

Blake v Galloway [2004] 1 WLR 2844

Facts

- ❑ C and D, teenagers, were engaging in some 'horseplay' throwing small pieces of bark at one another.
- ❑ C was injured and sued in battery.

Held

- ❑ C had impliedly consented to the battery by participating in the 'horseplay'.



A. Consent



Blake v Galloway [2004] 1 WLR 2844

“In a sport which inevitably involves the risk of some physical contact, the participants are taken impliedly to consent to those contacts which can reasonably be expected to occur in the course of the game, and to assume the risk of injury from such contacts. Thus, for example, in the context of a fight with fists, ordinarily neither party has a cause of action for any injury suffered during the fight. But they do not assume ‘the risk of a savage blow out of all proportion to the occasion.’”

(Dyson LJ, [21])

A. Consent

Chatterton v Gerson [1981] 1 All ER 257

Facts

- ❑ C underwent an operation and suffered from a debilitating side effect of the operation.
- ❑ C sued in battery, arguing that D had failed to tell her about the inherent risks in the operation and so her consent was vitiated.

Held

- ❑ As she had generally understood the operation her consent was not vitiated.

A. Consent

Chatterton v Gerson [1981] 1 All ER 257

- “once the patient is informed in broad terms of the nature of the procedure which is intended, and gives her consent, that consent is real, and the cause of the action on which to base a claim for failure to go into risks and implications is negligence, not trespass [i.e. battery]”. (Bristow J, p.443)
- (Compare *Montgomery v Lanarkshire* – failure to inform C of risks of medical treatment is a breach of duty in negligence.)

A. Consent

Chatterton v Gerson [1981] 1 All ER 257

“Of course if information is withheld in bad faith, the consent will be vitiated by fraud. Of course if by some accident, as in a case in the 1940's in the Salford Hundred Court where a boy was admitted to hospital for tonsilectomy and due to administrative error was circumcised instead, trespass [i.e. battery] would be the appropriate cause of action against the doctor... .”

(Bristow J, p.443)

B. Necessity

F v West Berkshire Health Authority [1989] 2 AC 1

Facts

- ❑ C was a patient in a mental hospital who lacked capacity – mental age of a child.
- ❑ C began a sexual relationship with another patient, and hospital staff and her mother feared she would become pregnant, which she would be unable to handle.
- ❑ Her mother sought to have her sterilised.

B. Necessity

F v West Berkshire Health Authority [1989] 2 AC 1

Held

- ❑ C lacked capacity, and sterilisation was in her best interests.
- ❑ It would not, therefore, be a battery for doctors to sterilise C.

B. Necessity

F v West Berkshire Health Authority [1989] 2 AC 1

“...the basic requirements, applicable in these cases of necessity ...”

- (1) “a necessity to act when it is not practicable to communicate with the assisted person, but also
- (2) the action taken must be such as a reasonable person would in all the circumstances take, acting in the best interests of the assisted person.”

(Lord Goff, [75])

B. Necessity

Mental Capacity Act 2005

s2(1)

“a person lacks capacity in relation to a matter if at the material time he is unable to make a decision for himself in relation to the matter because of an impairment of, or a disturbance in the functioning of, the mind or brain.”

s3(1)

“For the purposes of section 2, a person is unable to make a decision for himself if he is unable—

- (a) to understand the information relevant to the decision,
- (b) to retain that information,
- (c) to use or weigh that information as part of the process of making the decision, or
- (d) to communicate his decision (whether by talking, using sign language or any other means).”

C. Self-defence



Ashley v Chief Constable of Sussex [2008] UKHL 25

Facts

- ❑ Cs were related to X, who had been shot dead by the police during a raid.
- ❑ The officer had been *criminally* acquitted on the basis of self-defence as he honestly believed himself to be at threat of attack from X.

Held

- ❑ In tort, D's belief must not just be honest but also *reasonable*.
- ❑ D's belief was not *reasonable* – so he was held liable in battery.

C. Self-defence



Ashley v Chief Constable of Sussex [2008] UKHL 25

“It is one thing to say that if A’s mistaken belief was honestly held he should not be punished by the criminal law. It would be quite another to say that A’s unreasonably held mistaken belief would be sufficient to justify the law in setting aside B’s [civil] right not to be subjected to physical violence by A.”

(Lord Scott, [18])

C. Self-defence



- D's actions must be proportionate to the threat for the defence to succeed.

Compare:

- *Cockcroft v Smith* [1705] – C's act of running with his finger extended towards the D's eyes did not justify D off part of the finger!!
- *Cross v Kirkby* [2000] – Where D acts reasonably in self-defence, "the law does not require him to measure the violence to be deployed with mathematical precision" (Judge LJ, [90])